MINUTES
OF THE COUNCIL MEETING OF THE CITY OF TEA TREE GULLY HELD ON TUESDAY 30 JUNE 2026 AT 7:02 PM IN THE COUNCIL CHAMBERS, 571 MONTAGUE ROAD, MODBURY

1. Opening Prayer and Welcome

The Mayor read the Opening Prayer and Acknowledgement of Country Statement.

2. Attendance Record:

2.1 Present

Her Worship Mayor M Ryan, Crs D Proleta, B Keane, J Hawkvelt, R Unger, I Zagladov, L Petrie, K Drozdoff, M Champion, S Keane and K Foreman.

2.2 Apologies

Nil

2.3 Leave of Absence

Cr L Jones (*previously sought)*

2.4 Record of Officers in Attendance (physical or electronic)

Ryan McMahon	Chief Executive Officer
Justin Robbins	General Manager Strategy & Finance
Shannon Hockley	General Manager Corporate Services
Felicity Birch	General Manager City Operations
Michael Pereira	General Manager Community Services
Hayley Hasler	Governance Advisor
Kristyn Barnes	Governance Administration Officer
Lisa Gilmartin	Manager Finance & Rating
Ingrid Wilkshire	Manager City Strategy
Rosa Gagetti	Senior Land & Property Officer

2.5 Record of Number of Persons in the Public Gallery – Physical Attendance

8 Attendees

Record of Consultants in Attendance

Michael Kelledy	KelledyJones

3. Confirmation of Minutes to the Previous Meeting

Moved Cr B Keane, Seconded Cr Champion

That the Minutes of the Council Meeting held on 9 June 2026 be confirmed as a true and accurate record of proceedings.

Carried Unanimously (969)

4. Public Forum - Nil

5. Deputations

Daniel Edgecombe, Presiding Member of the Audit and Risk Committee spoke in relation to the report titled *"Recommendations and Activities from the Audit & Risk Committee Meeting held on 16 June 2026".*

6. Presentations - Nil

7. Petitions - Nil

8. Indication of Conflict of Interest

Members indicated any material and/or general conflicts of interest in matters appearing before the Council.

Bring forward all remaining business prior to Adjourned Business

Moved Cr Unger, Seconded Cr Hawkvelt

That all remaining business prior to Adjourned Business be brought forward

The Mayor casted her vote and declared the motion Lost

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The following members voted in the negative: Crs S Keane, Champion, Drozdoff, B Keane, Proleta.

The Mayor casted her vote and declared the motion **Lost**.

9. Adjourned Business

At the Council meeting on 9 June 2026, consideration of the report titled "Retention of Confidential Documents – Audit and Risk Committee – Appointment of Independent Member and Presiding Member and Terms of Reference" was adjourned due to want of a quorum. The item was being considered in confidence in accordance with sections 90(2) & (3)a of the Local Government Act 1999. Consideration of this item resumed in confidence pursuant to the motion carried on 9 June 2026, and members of the public were excluded for the duration of the item.

The following staff members on duty remained at the meeting for the following item:

Ryan McMahon, Shannon Hockley, Justin Robbins, Felicity Birch, Michael Pereira, Hayley Hasler, Kristyn Barnes and Michael Kelledy (KelledyJones).

9.1 Retention of Confidential Documents - Audit and Risk Committee - Appointment of Independent Member and Presiding Member and Terms of Reference (D26/41494)

Mayor Ryan advised that the adjourned motion regarding Retention of Confidential Documents was redundant as the appointment motion had already been enacted. No mover or seconder was sought, and the item was not considered.

9.2 Recommendations from the CEO Performance Review Committee Meeting held on 2 June 2026 (D26/41378)

Recommendation for Moving into Camera

Pursuant to section 120(1) of the Local Government Act 1999, Ryan McMahon, Chief Executive Officer, declared a conflict of interest in relation to items 9.2 and 9.3 of the agenda. Ryan McMahon dealt with this matter in an accountable and transparent way by leaving the meeting at 7.25pm.

Moved Cr S Keane, Seconded Cr Champion

1. That pursuant to Section 90(2) of the Local Government Act, 1999 the Council orders that the public (except staff on duty and Council's legal advisors) be excluded from the meeting to enable discussion on the Recommendations from the CEO Performance Review Committee Meeting held on 2 June 2026.

2. Council is satisfied that pursuant to section 90(3) a of the Local Government Act 1999, the information be received, discussed or considered in relation to this item is:
   - information the disclosure of which would involve the unreasonable disclosure of information concerning the personal affairs of any person (living or dead) .
     - relates to information concerning the personal which would involve the unreasonable disclosure of information concerning the personal affairs of the Chief Executive Officer, in that details of his performance and remuneration review will be discussed, which are sensitive and are

personal details that should only be known to those who have participated in the review process.

3. In addition, the disclosure of this information would, on balance, be contrary to the public interest. The public interest in the public access to the meeting has been balanced against the public interest in the continued non-disclosure of the information. The benefit to the public at large resulting from withholding the information outweighs the benefit to it of disclosure of the information. The Committee is satisfied that the principle that the meeting be conducted in a place open to the public has been outweighed in the circumstances, on the basis that details of the CEO's performance and remuneration may be prematurely disclosed before the details of the review have been discussed with the Chief Executive Officer or Council, and could therefore result in the release of inaccurate or misleading information.

Carried Unanimously (970)

The following staff members on duty remained at the meeting for the following item:

Shannon Hockley, Justin Robbins, Felicity Birch, Michael Pereira, Hayley Hasler, Kristyn Barnes and Michael Kelledy (KelledyJones).

Formal Motion - Item Adjourned

Moved Cr Hawkvelt, Seconded Cr Zagladov

That the report titled *"Recommendations from the CEO Performance Review Committee Meeting held on 2 June 2026"* be adjourned.

The Mayor casted her vote and declared the motion Lost

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The following members voted in the negative: Crs S Keane, Champion, Drozdoff, B Keane, Proleta.

The Mayor casted her vote and declared the motion **Lost**.

9.2 Recommendations from the CEO Performance Review Committee Meeting held on 2 June 2026 (D26/41378)

During the debate, Cr Unger requested for one (1) document to be tabled titled "Chief Executive Officer Employment Agreement May 2022". One (1) document was tabled in hard-copy at the meeting and retrieved (reference D22/39005).This document is available for view access only, upon request from Elected Members.

Moved Cr S Keane, Seconded Cr Champion

That Council:

1. Approves the extension of the CEO Employment Agreement for a further 3 years (3 September 2030).

2. Authorises the Mayor / Presiding Member of the CEO Performance Review Committee to sign any correspondence related to the changes to the CEO employment agreement and Total Employment Cost package as resolved above.

Formal Motion

Moved Cr B Keane, Seconded Cr Proleta

That the motion be put.

The Mayor casted her vote and declared the motion Carried (971)

Motion

That Council:

1. Approves the extension of the CEO Employment Agreement for a further 3 years (3 September 2030).

2. Authorises the Mayor / Presiding Member of the CEO Performance Review Committee to sign any correspondence related to the changes to the CEO employment agreement and Total Employment Cost package as resolved above.

The Mayor casted her vote and declared the motion Carried (972)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

Retention of confidential documents:
Moved Cr S Keane, Seconded Cr Foreman

That having considered the agenda item titled “Recommendations from the CEO Performance Review Committee Meeting held on 2 June 2026” and dated 30 June 2026 in confidence under section 90(2) & (3) a and Section 91(7) of the Local Government Act 1999:

- information the disclosure of which would involve the unreasonable disclosure of information concerning the personal affairs of any person (living or dead)

the Council pursuant to section 91(7) of the Act orders that the report and minutes relevant to this item be retained in confidence until:

- The Mayor and CEO have signed any correspondence related to the CEO employment agreement extension (and these signed documents have been provided to the CEO); or
- The Council resolves otherwise, whichever occurs first.

with the exception of the tabled document titled "*Chief Executive Officer Employment Agreement May 2022*".

Carried Unanimously (973)

9.3 Appointment of Qualified Independent Person for CEO Performance Review (D26/41375)

Recommendation for Moving into Camera

Moved Cr S Keane, Seconded Cr Foreman

1. That pursuant to Section 90(2) of the Local Government Act, 1999 the Council orders that the public (except staff on duty) be excluded from the meeting to enable discussion on the Appointment of Qualified Independent Person for CEO Performance Review.

2. That the Council is satisfied that pursuant to section 90(3) b (i) and b (ii) of the Local Government Act 1999, the information be received, discussed or considered in relation to this item is:
   - information the disclosure of which could reasonably be expected to confer a commercial advantage on a person with whom the council is conducting, or proposing to conduct, business, or to prejudice the commercial position of the council; AND information the disclosure of which would, on balance, be contrary to the public interest .
     - On the basis that release of this information has the ability to directly impact Council's ability to negotiate the best value for money for the community .

3. In addition, the disclosure of this information would, on balance, be contrary to the public interest. The public interest in the public access to the meeting has been balanced against the public interest in the continued non-disclosure of the information. The benefit to the public at large resulting from withholding the information outweighs the benefit to it of disclosure of the information. The Council is satisfied that the principle that the meeting be conducted in a place open to the public has been outweighed in the circumstances. That the Council is satisfied that the principle that the meeting should be conducted in a place open to the public has been outweighed in relation to this matter by the need to keep the discussion of this matter confidential because early release of this information has the ability to directly impact Council's ability to negotiate the best value for money for the community.

Carried Unanimously (974)

The following staff members on duty remained at the meeting for the following item:

Shannon Hockley, Justin Robbins, Felicity Birch, Michael Pereira, Hayley Hasler and Kristyn Barnes.

9.3 Appointment of Qualified Independent Person for CEO Performance Review (D26/41375)
Moved Cr S Keane, Seconded Cr Proleta

That Council approves Michael Kelledy, from KelledyJones Lawyers as a suitably qualified person(s) to undertake the responsibilities pursuant to section 102A of the Local Government Act 1999 regarding the CEO Performance Review process for the period of 1 Year (with possibility of extension of 1 + 1 year - totaling 3 years maximum).

Formal Motion
Moved Cr B Keane, Seconded Cr Proleta

That the motion be put.

The Mayor casted her vote and declared the motion Carried (973)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

Motion

That Council approves Michael Kelledy, from KelledyJones Lawyers as a suitably qualified person(s) to undertake the responsibilities pursuant to section 102A of the Local Government Act 1999 regarding the CEO Performance Review process for the period of 1 Year (with possibility of extension of 1 + 1 year - totaling 3 years maximum).

The Mayor casted her vote and declared the motion Carried (974)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

Retention of confidential documents:

Moved Cr S Keane, Seconded Cr Hawkvelt

1. That having considered the agenda item titled “Appointment of Qualified Independent Person for CEO Performance Review” and dated 30 Jun 2026 in confidence under section 90(2) & (3) b (i) and b (ii) and Section 91(7) of the Local Government Act 1999:

    - information the disclosure of which could reasonably be expected to confer a commercial advantage on a person with whom the council is conducting, or proposing to conduct, business, or to prejudice the commercial position of the council; AND information the disclosure of which would, on balance, be contrary to the public interest

    the Council pursuant to section 91(7) of the Act orders that the report, attachments and minutes relevant to this item be retained in confidence with exception of those third parties involved until have entered into an agreement with the suitably qualified person(s) or until the Council resolves otherwise, whichever occurs first.

2. That Council gives the power pursuant to Section 91 of the Local Government Act 1999 to the General Manager Corporate Services to revoke the order made under Section 91 (7) of the Local Government Act 1999 subject to the Chief Executive Officer consulting with the Mayor and reporting to the Elected Members of the revocation.

Carried Unanimously (977)

Crs Zagladov, Unger and Drozdoff left the meeting at 8.21pm.

Ryan McMahon re-entered the meeting at 8.21pm

10. Motions Lying on the Table - Nil

11. Committee Reports

Service Review Committee - Nil

Crs Zagladov and Unger re-entered the meeting at 8.22pm.

Audit & Risk Committee

11.1 Recommendations and Activities from the Audit & Risk Committee Meeting held on 16 June 2026

Incident Management Policy (D25/93951)
Moved Cr Champion, Seconded Cr S Keane

That the "Incident Management Policy" as reviewed by the Audit & Risk Committee Meeting on 16 June 2026 be adopted.

Carried Unanimously (978)

Cr Drozdoff was not present for the vote

Strategic Asset Management Plan 2025-2034 (D26/38894)
During the moving of the motion, Cr Drozdoff re-entered the meeting at 8.24pm.

Moved Cr Champion, Seconded Cr B Keane

That the Strategic Asset Management Plan 2025-2034, as detailed in Attachment 1 of the report titled 'Strategic Asset Management Plan 2025-2034' and dated 16 June 2026 be adopted.

Carried (979)

Asset Management Policy (D26/39498)
Moved Cr Champion, Seconded Cr B Keane

That the "Asset Management Policy" as reviewed by the Audit & Risk Committee Meeting on 16 June 2026 be adopted.

Carried Unanimously (980)

Budget Adoption and Rates Declaration for the Financial Year Ending 30 June 2027 (D26/39272)

1. Community Consultation Outcomes
   Moved Cr S Keane, Seconded Cr B Keane

   That Council notes the Community Engagement Outcomes Report in relation to the Draft Annual Business Plan 2026-2027 as detailed in Attachment 1 of the report entitled "Budget Adoption and Rates Declaration for Year Ending 30 June 2027".

   Carried Unanimously (981)

2. Variation to Fees and Charges Register for 2026-2027
   Moved Cr Champion, Seconded Cr S Keane

   That Council adopts the variations to the Fees and Charges Register listed in 3.2 of the report entitled "Budget Adoption and Rates Declaration for Year Ending 30 June 2027".

Carried Unanimously (982)

3. Variation to Capital Works Program for 2026-2027
Moved Cr Champion, Seconded Cr Proleta

That Council adopts the variations to the Capital Works Program listed in Section 3.3 of the report entitled “Budget Adoption and Rates Declaration for Year Ending 30 June 2027” which are to be included in the Annual Business Plan and Budget 2026-2027.

The Mayor casted her vote and declared the motion Carried (983)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

4. Adoption of the Annual Business Plan 2026-2027
Moved Cr Champion, Seconded Cr S Keane

That pursuant to Section 123 of the Local Government Act 1999, Council adopts the Annual Business Plan 2026-2027 as presented and updated following community consultation and Council’s previous considerations as per Attachment 3 of the report titled “Budget Adoption and Rates Declaration for Financial Year Ending 30 June 2027” noting that various figures and details are to be inserted by staff to reflect the resolutions of this meeting and have been tabled to include the final valuation and rating considerations.

The Mayor casted her vote and declared the motion Carried (984)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

5. Adoption of the Financial Budget for Year Ending 30 June 2027
Moved Cr Champion, Seconded Cr S Keane

That pursuant to the provisions of Section 123 of the Local Government Act 1999, and Regulation 6 of the Local Government (Financial Management) Regulations 2011, and having considered all submissions received in accordance with Section 123 (6) of the Local Government Act, 1999, the financial budget for the Financial Year Ending 30 June 2027 as presented in Attachment 2 of the report titled "Budget Adoption and Rates Declaration for Financial Year Ending 30 June 2027", be adopted including the:

- Budgeted Statement of Comprehensive Income;
- Budgeted Statement of Financial Position;
- Budgeted Statement of Changes in Equity;
- Budgeted Statement of Cash Flow;
- Summary of operating and capital investment activities in a manner consistent with the Uniform Presentation of Finances;
- Operating Surplus Ratio estimate;
- Asset Renewal Funding Ratio estimate; and
- Net Financial Liabilities Ratio estimate.

and Council notes that its Operating Income is sufficient to meet projected Operating Expenses for the Financial Year Ending 30 June 2027.

The Mayor casted her vote and declared the motion Carried (985)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

6. Adoption of the Annual Business Plan Summary 2026-2027
Moved Cr Champion, Seconded Cr S Keane

That pursuant to section 123(9) of the Local Government Act 1999, Council adopts the Annual Business Plan Summary for 2026-2027 as detailed in Attachment 4 of the report entitled "Budget Adoption and Rates Declaration for Financial Year Ending 30 June 2027" noting that the details are to be completed by staff to reflect the resolutions of this meeting and any other editorial changes that occur prior to publication.

The Mayor casted her vote and declared the motion Carried (986)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

7. Adoption of the Valuation of Land for the Purpose of Rating for the Financial Year Ending 2027
Moved Cr Champion, Seconded Cr Unger

That pursuant to the provisions of Section 167(2)(a) of the Local Government Act 1999, Council, for rating purposes for the financial year ending 30 June 2027, adopts the most recent Valuer General's capital valuations, as recorded in the Assessment Record for land within the area of the City of Tea Tree Gully totalling $39,290,520,000 (rateable properties $37,951,248,851).

Carried Unanimously (987)

8. Declaration of Differential General Rates and Minimum Amount for the Financial Year Ending 2027
Moved Cr Champion, Seconded Cr B Keane

a) That pursuant to the provisions of Sections 153(2), 153(1)(b) and 156(1)(a) of the Local Government Act 1999 and consistent with the prescribed categories of land use set out at Regulation 14(1) of the Local Government Act (General) Regulations 2013, Council declares differential general rates based on the capital values of rateable land for the financial year ending 30 June 2027, as follows:

Residential	0.0025880 cents-in-the-dollar
Commercial – Shop	0.0056418 cents-in-the-dollar
Commercial – Office	0.0056418 cents-in-the-dollar
Commercial – Other	0.0056418 cents-in-the-dollar
Industry – Light	0.0056418 cents-in-the-dollar
Industry – Other	0.0056418 cents-in-the-dollar
Primary Production	0.0025880 cents-in-the-dollar
Vacant Land	0.0051760 cents-in-the-dollar
Other	0.0025880 cents-in-the-dollar

b) That pursuant to Section 158(1)(a) of the Act, Council fixes a minimum amount of $1,573 payable by way of general rates on rateable properties within the area of the City of Tea Tree Gully.

The Mayor casted her vote and declared the motion Carried (988)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

9. Declaration of Separate Rates for the Financial Year Ending 2027
Moved Cr Champion, Seconded Cr S Keane

That pursuant to Section 66 of the Landscape South Australia Act 2019 and Section 154 of the Local Government Act 1999, Council, in order to reimburse to the Council the amount contributed to the Green Adelaide Board levy of $2,242,512 declares for the year ending 30 June 2027, a separate rate of 0.0000590938 cents in the dollar on the capital valuation of all rateable properties within the Council area.

Carried (989)

10. Payment of Rates
Moved Cr Drozdoff, Seconded Cr B Keane

That pursuant to Section 181(1) of the Local Government Act 1999, general rates will fall due in four equal or approximately equal instalments per year (unless otherwise agreed with the principal ratepayer). The due dates for payment will be the first Tuesday of September and December 2026 and March and June 2027 and the Chief Executive Officer of Council is authorised vary these dates should unforeseen circumstances require such.

Carried Unanimously (990)

11. Adoption of the Long-Term Financial Plan
Moved Cr S Keane, Seconded Cr Champion

That pursuant to Section 122 (1a)(a) of the Local Government Act 1999, Council adopts the Long Term Financial Plan as included in Annual Business Plan 2026-2027 as presented and updated following community consultation and Council's previous considerations as per Attachment 3 of the report titled "Budget Adoption and Rates Declaration for Financial Year Ending 30 June 2027" noting that various figures and details are to be inserted by staff to reflect the resolutions of this meeting and have been tabled to include the final valuation and rating considerations.

The Mayor casted her vote and declared the motion Carried (991)

Cr Unger called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs S Keane, Champion, Drozdoff, B Keane and Proleta.

The following members voted in the negative: Crs Foreman, Petrie, Zagladov, Unger and Hawkvelt.

The Mayor casted her vote and declared the motion **Carried**.

Governance & Policy Committee - Nil

CEO Performance Review Committee - Nil

12. Management Reports

Office of the Chief Executive Officer

12.1 Limited waiver of clause 9.4 in Stormwater Infrastructure and Commitments Deed - Golden Grove (D26/43462)

During the moving of the motion, Cr Hawkvelt left the meeting at 9.29pm.

Moved Cr B Keane, Seconded Cr Proleta

That Council

1. Council grants a waiver to Jason Dean Vaughan and Helen Vaughan on the terms outlined in Attachment 1 and authorises the Chief Executive Officer to sign that waiver and to procure the signature of Jason Dean Vaughan and Helen Vaughan on that waiver.
2. Council grants a waiver to Domenic Marro and Edda Adele Jacky Marro on the terms outlined in Attachment 1 and authorises the Chief Executive Officer to sign that waiver and to procure the signature of Domenic Marro and Edda Adele Jacky Marro on that waiver.
3. Council grants a waiver to Eric Del Tedesco and Linda Chiara Florinda Del Tedesco on the terms outlined in Attachment 1 and authorises the Chief Executive Officer to sign that waiver and to procure the signature of Eric Del Tedesco and Linda Chiara Florinda Del Tedesco on that waiver.
4. Council grants a waiver to Wendy Cherie St.Alban on the terms outlined in Attachment 1 and authorises the Chief Executive Officer to sign that waiver and to procure the signature of Wendy Cherie St.Alban on that waiver.
5. Council grants a waiver to Paul Stewart and Adair Lecornu on the terms outlined in Annexure A and authorises the Chief Executive Officer to sign that waiver and to procure the signature of Paul Stewart and Adair Lecornu on that waiver.
6. Council grants a waiver to Paul Stewart on the terms outlined in Annexure A and authorises the Chief Executive Officer to sign that waiver and to procure the signature of Paul Stewart on that waiver.
7. Council grants a waiver to Edward Donald Robert Holloway and Anne Holloway on the terms outlined in Attachment 1 and authorises the Chief Executive Officer to sign that waiver and to procure the signature of Edward Donald Robert Holloway and Anne Holloway on that waiver.
8. Council delegates to the Chief Executive Officer the power to make any changes to the waivers granted in paragraphs 1 to 7 above that are to cure typographical or administrative errors and/or execution clause changes from that expressed in Attachment 1 prior to signing those waivers.

9. Council delegates to the Chief Executive Officer the power to grant waivers to the same “Landowner” on the same terms as those identified in Attachment 1 but instances where those terms are modified to the extent that the transfer of the respective land therein is to an entity other than the “Purchaser” expressed in Attachment 1 where the Chief Executive Officer becomes aware that the actual purchasing entity so differs.

Carried Unanimously (992)

Cr Hawkvelt was not present for the vote.

12.2 Notice of Acquisition - Right of Way - Allotment (Reserve) 2001 - The Grove Way, Golden Grove (D26/38307)

Pursuant to sections 74 and 75B of the Local Government Act 1999 Cr Foreman declared a general conflict of interest in relation to the matter on the basis that her employer is involved in the funding of this project as part of their election commitments. Cr Foreman dealt with this matter in an accountable and transparent way by leaving the meeting while the matter was discussed and voted on. Cr Foreman left the meeting at 9.29pm.

Moved Cr S Keane, Seconded Cr Proleta

That Council accepts the non-monetary offer of compensation from the Minister for Health and Wellbeing for the acquisition of a right of way over the whole of Allotment (Reserve) 2001 at Lot 2001 The Grove Way, Golden Grove contained within Certificate of Tile Volume 6329, Folio 763 to provide access to the Golden Grove Ambulance Station.

Carried Unanimously (993)

Crs Hawkvelt and Foreman were not present for the vote.

Crs Drozdoff and Unger left the meeting at 9.31pm.

Cr Unger re-entered the meeting at 9.31pm.

12.3 Outcomes of External Grant Funding Opportunities (D26/43928)

Moved Cr Champion, Seconded Cr S Keane

That Council:

1. Resolves to enter into a funding agreement with the Power Line Environment Committee (PLEC) and authorises the Chief Executive Officer to sign and seal (if required) any grant deeds as required by the relevant grant funding body to underground power lines on North East Road, Ridgehaven.

2. Endorses $1.115m which represents Council’s PLEC contribution to the project including a 10% contingency, to be funded through the Projects to be Grant Funded budget line.

3. Authorises the Mayor and Chief Executive Officer to sign and seal (if necessary) all relevant documents to enter into a funding agreement with the

Commonwealth Government for $300k of grant funding towards the DDA bathroom upgrades for Hope Valley Bowling Club.

4. Endorses $100k which represents Council's contribution to DDA bathroom upgrades for Hope Valley Bowling Club to be funded through the Projects to be Grant Funded budget line.

Carried (994)

Crs Hawkvelt, Foreman and Drozdoff were not present for the vote.

Crs Hawkvelt and Foreman re-entered the meeting at 9.32pm.

12.4 Solar Panel and Battery Installation Funding Support - Hope Valley Bowling & Community Club Inc (D26/43863)
Moved Cr Champion, Seconded Cr S Keane

That Council:

1. Notes that the Hope Valley Bowling and Community Club Inc proposes to remove its existing solar system and install a new solar and battery system at its clubrooms at 2-16 Deakin Avenue, Hope Valley for an estimated total cost of $78,000, and notes that the Club has obtained a South Australian Government Powering Business Grant of $28,000 to support the installation.

2. Approves repayable funding of $50,000 to the Hope Valley Bowling and Community Club Inc at an annual interest rate of 6%, repayable in monthly instalments over a ten-year term for the purpose of installing a new solar and battery system at its clubrooms located at 2-18 Deakin Avenue, Hope Valley.

3. Authorises the CEO or his delegate to execute appropriate documentation to implement resolution 2, including a variation to the existing lease of the subject premises to record the repayable funding arrangement, with all other terms to remain the same.

Carried Unanimously (995)

Cr Drozdoff was not present for the vote.

City Operations - Nil

Corporate Services - Nil

Community Services - Nil

Strategy & Finance - Nil

Cr Drozdoff re-entered the meeting at 9.34pm

The Mayor sought leave of the meeting to allow a 5 minute break. Leave was granted.

The meeting was paused at 9.34pm and resumed at 9.39pm.

13. Motion(s) on Notice

13.1 Motion on Notice - Modbury Heights Footpath Network (Cr Sandy Keane) (D26/42843)

Moved Cr S Keane, Seconded Cr Foreman

That a report be prepared for Council consideration no later than 11 August outlining:

- any service level gaps, and budget estimates, for the footpath network in Modbury Heights in the vicinity of Melrose St
- The cost of constructing a footpath on Melrose St Modbury Heights so that residents are
  serviced on both sides of the road where appropriate
- Outlining options to delay other similar projects in Modbury Heights to progress addressing the service level gaps as a priority

Carried (996)

13.2 Motion on Notice - Gardening and Verge Maintenance (Cr Kimberley Drozdoff) (D26/44669)

Moved Cr Drozdoff, Seconded Cr Foreman

1. That the CEO prepare a report to council no later than 8 September 2026 to Investigate establishing a community-based gardening initiative, such as a garden trail or horticultural recognition program, aimed at encouraging resident participation and showcasing local gardens. The report should:
   - Consider delivery options that are low-cost and primarily focused on promotion, coordination and community recognition.
   - Explore opportunities to incorporate a range of garden types and styles, embracing individuality and unique creativity

2. That the CEO prepare a report to council to outline what currently is in place and/or planned to support verge gardening/maintenance initiatives and to identify further low-cost options to incentivise residents to plant out and maintain their verge.

Carried Unanimously (997)

13.3 Motion on Notice - Confidential Reports (Cr Irena Zagladov) (D26/44825)
Moved Cr Zagladov, Seconded Cr Unger

That Council requests the Chief Executive Officer to adopt report preparation practices whereby, where a report contains both confidential and non-confidential recommendations, the non-confidential recommendations are separately identified and presented for consideration in open session prior to any confidential consideration, unless separate consideration would compromise the confidentiality of the remaining matters.

Carried (998)

Cr Zagladov called for a division.

The Mayor set the vote aside.

The following members voted in the affirmative: Crs Foreman, Drozdoff, Petrie, Zagladov, Unger and Hawkvelt and B Keane,

The following members voted in the negative: Crs S Keane, Champion and Proleta.

The Mayor declared the motion **Carried**.

14. Motions without Notice

14.1 Condolence Motion

Moved Cr Petrie, Seconded Cr Foreman

That Council express its deep regret at the passing of former volunteer for the City of Tea Tree Gully- Graham Fussen, and places on record its appreciation for his long volunteer service.

Carried Unanimously (999)

15. Questions on Notice

15.1 Questions on Notice - Publication of Livestream Council Meeting Recordings (Cr Kimberley Drozdoff) (D26/44561)
The answer to the Question on Notice has been provided as Attachment 1.

15.2 Questions on Notice - Easter Carnival Fireworks (Cr Kimberley Drozdoff) (D26/44564)
The answer to the Question on Notice has been provided as Attachment 2.

15.3 Questions on Notice - Ward project total costings (Cr Kimberley Drozdoff) (D26/44568)
The answer to the Question on Notice has been provided as Attachment 3.

15.4 Questions on Notice - Golden Grove Code Amendment and Long Term Financial Plan 2027-2036 (Cr Irena Zagladov) (D26/44813)
The answer to the Question on Notice has been provided as Attachment 4.

16. Questions without Notice

Cr Hawkvelt asked 2 questions.

Cr Unger asked 1 question.

17. Mayor's Report, Council Delegates and Activities Report – Nil

18. Information Reports

The following Information reports were received at the meeting:

18.1 Local Government Association (LGA) Ordinary General Meeting (OGM) Outcomes - May 2026 (D26/39287)

18.2 Local Government Association - Annual General Meeting - Proposed Items of Business - December 2026 (D26/42911)

19. Status Report on Resolutions - Nil

20. Other Business

Cr Unger spoke in relation to bringing an alternative motion regarding a discretionary rebate for retirement villages and independent living units to a future meeting.

Cr Zagldov provided a correction to the record regarding her qualifications which is an Honours degree in Economics.

21. Confidential Items – *Refer to Adjourned Business*

22. Date of Next Ordinary Meeting

14 July 2026

The Mayor declared the meeting closed at 10.31 pm.

Confirmed……..
Mayor 14 July 2026

Attachment 1

Council Meeting - 30 June 2026

Questions on Notice - Publication of Livestream Council Meeting Recordings (Cr Kimberley Drozdoff) D26/44561

Cr Kimberley Drozdoff asked the following questions on notice:

Question:

1. Has the recording and publication of Council meetings been formally considered prior to May 2026? If so, please outline when it was considered, by whom (elected members and/or administration), and the outcomes of those considerations?

2. To what extent has the progression of public meeting reporting (including recordings to the website or livestreaming) been dependent on direction or decisions of elected members?

3. Prior to April 2026, during the current Council term, how many formal opportunities such as reports, motions, or agenda items have existed to consider or implement the publication of meeting recordings online?

4. Does Governance consider the current implementation of live streaming to be consistent with Council's historical position regarding the publication of meeting recordings?

5. At any point, has the absence of published recordings been identified as a governance or transparency issue, and are there any documented internal or external concerns relating to this?

6. Are there any legal ramifications to putting audio recordings on the website? If so can this be explained?

Cr Kimberley Drozdoff
22 June 2026

Response:

1. **Has the recording and publication of Council meetings been formally considered prior to May 2026? If so, please outline when it was considered, by whom (elected members and/or administration), and the outcomes of those considerations?**

   Publishing of audio recordings is the decision of Council. A report was presented to the Governance and Policy Committee on 25 July 2022, and subsequently to Council on 9 August 2022, regarding the continuation of live-streaming beyond the pandemic period. This report also considered the publication of audio recordings on the Council's website.

2. **To what extent has the progression of public meeting reporting (including recordings to the website or livestreaming) been dependent on direction or decisions of elected members?**

   Responsibility for decisions relating to the live-streaming and publication of audio recordings rests wholly with the Council.

3. **Prior to April 2026, during the current Council term, how many formal opportunities such as reports, motions, or agenda items have existed to consider or implement the publication of meeting recordings online?**

   Prior to April 2026 and during the current Council term, there have been no stand-alone reports, motions, or agenda items have been presented specifically to consider or implement the publication of meeting recordings online. However, the annual review of the Code of Practice for Meeting Procedures has provided opportunities for this matter to be raised and considered by both the Governance and Policy Committee and Council.

   For context, Council has approved modification to the Code of Practice for Meeting Procedures on the following dates:
   - 26 September 2023
   - 23 July 2024
   - 27 May 2025
   - 24 March 2026

   Furthermore, the Governance and Policy Committee have reviewed the Code of Practice for Meeting Procedures on the following dates:
   - 21 June 2023
   - 30 August 2023
   - 16 July 2024
   - 20 May 2025

   While the specific matter of recording or publishing Council meetings may not have been raised at each of these meetings, these reviews represent the formal and appropriate opportunities through which such changes could be proposed and considered by elected members.

4. **Does Governance consider the current implementation of live streaming to be consistent with Council's historical position regarding the publication of meeting recordings?**

   Administration's current practices regarding livestreaming and audio recording are consistent with and reflect the Council's adopted position as set out in the Code of Practice for Meeting Procedures.

5. **At any point, has the absence of published recordings been identified as a governance or transparency issue, and are there any documented internal or external concerns relating to this?**

   The absence of published audio recordings has not been formally identified as a governance or transparency issue. Council fulfils its legislative obligations through the publication of agendas and minutes.

6. **Are there any legal ramifications to putting audio recordings on the website? If so can this be explained?**

   There are potential legal and risk considerations associated with publishing audio recordings of Council meetings. These include:
   - Increased exposure to defamation claims arising from statements made during meetings;
   - Potential privacy breaches if personal or sensitive information is disclosed;
   - Reputational risks to Council and individuals; and
   - The possibility that excerpts may be taken out of context or misinterpreted.

   Once recordings are published, they become a widely shareable record as they may be downloaded, edited or redistributed.

Attachments

N/A

Attachment 2

Council Meeting - 30 June 2026

Questions on Notice - Easter Carnival Fireworks (Cr Kimberley Drozdoff) D26/44564

Cr Kimberley Drozdoff asked the following question on notice:

Question:

Can the Council confirm whether the council made any financial contributions towards the Easter carnival fireworks?

Cr Kimberley Drozdoff
22 June 2026

Response:

Council confirms that SA Showrides, organisers of the Adelaide Easter Carnival, received $5,000 funding through the Event Attraction Program allocated in June 2025. The funding was provided to support delivery of the overall event.

Attachments

N/A

Attachment 3

Council Meeting - 30 June 2026

Questions on Notice - Ward project total costings (Cr Kimberley Drozdoff) D26/44568

Cr Kimberley Drozdoff asked the following question on notice:

Question:

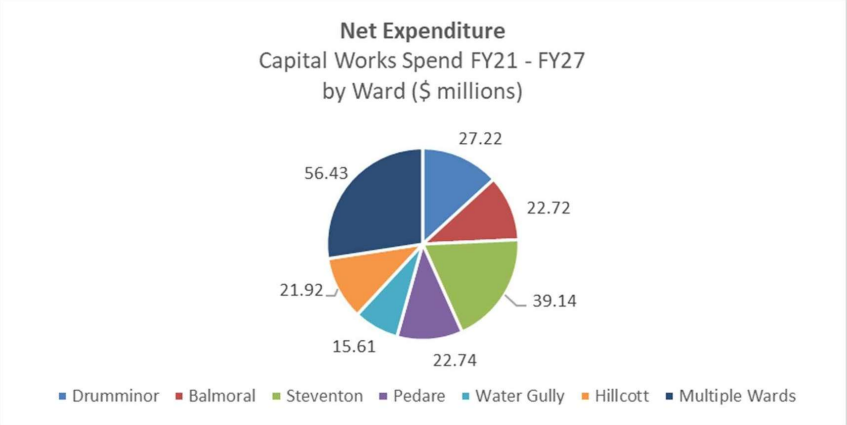
Can we have a breakdown of all projects total costings ward by ward - building and otherwise including playgrounds which have been completed / agreed too (yet to complete) and paid for by council for as far back as practicable?

Cr Kimberley Drozdoff
22 June 2026

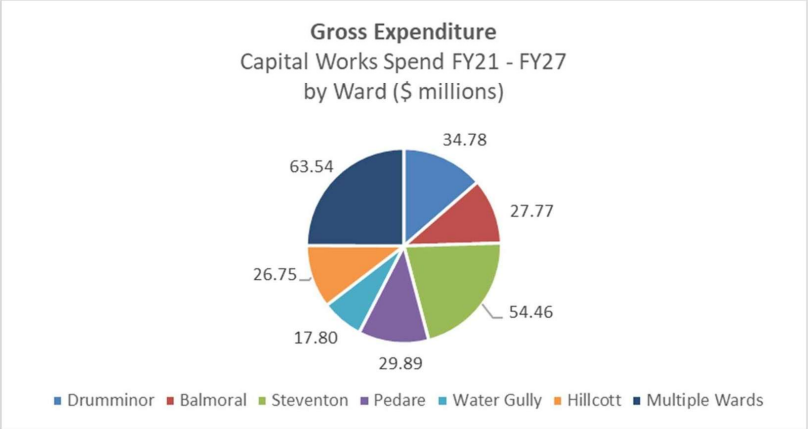
Response:

Data captured from FY21 to FY27 has been analysed to indicate that capital expenditure is distributed across all wards, with a portion of the program also delivered through projects classified as “Multiple Wards.” These projects represent Council-wide initiatives that are not attributable to a single ward, such as council-wide traffic management treatments, upgrades, renewals and infrastructure programs such as fencing and irrigation.

In terms of the $206 million net expenditure, which reflects the Council-funded component, the largest allocation is associated with “Multiple Wards” projects (27%). Among individual wards, Steventon has the highest level of net expenditure at 19%, followed by Drumminor (13%). Balmoral (11%), Pedare (11%) and Hillcott (11%) show comparable levels of expenditure, while Water Gully reflects a lower total relative to the other wards (8%).



The gross expenditure chart reflects the total value of $255m of projects delivered and shows a broadly consistent distribution across wards. Multiple Wards projects again represent the largest overall share, followed by Steventon (21%), with the remaining wards demonstrating a similar relative order to that shown in the net expenditure chart.



The difference between gross and net expenditure across wards reflects the impact of external funding sources, such as grants or contributions, which offset Council's direct funding requirement for particular projects. This indicates that a portion of the Capital Works Program has been supported by external funding arrangements.

The expenditure totals represented in the graphs incorporate a range of project types, including building works, roads and infrastructure, open space and playground upgrades, and other asset renewal activities. The values therefore reflect a combination of projects that have been completed, approved (agreed) or are in progress within the reporting period.

Attachments

N/A

Attachment 4

Council Meeting - 30 June 2026

Questions on Notice - Golden Grove Code Amendment and Long Term Financial Plan 2027-2036 (Cr Irena Zagladov) D26/44813

Cr Irena Zagladov asked the following question on notice:

Question:

The current draft Long Term Financial Plan 2027-2036 (LTFP) repeats the statement contained in the previous adopted LTFP 2026-2035 that:

"The impact from the Golden Grove Code Amendment had not been factored into the future years as there is still uncertainty as to timing and amounts."

Given that the Golden Grove Code Amendments were approved by the Minister on 9 January 2026, became operational on 12 February 2026, and are expected by PlanSA to provide for approximately 850 dwellings:

1. Has Council undertaken any modelling or formed any expectations regarding the timing and scale of development arising from the Golden Grove Code Amendments?

2. Does Council currently expect any additional assessments arising from the Golden Grove development to enter the rating base during the 2027–2036 LTFP period?

3. If so, in which financial year are those additional assessments and associated rate revenue first expected to occur, and what assumptions support not factoring those assessments and associated rate revenue into future years of the draft LTFP?

4. If not, what assumptions support the expectation that no additional assessments will arise during the life of the LTFP?

Cr Irena Zagladov
23 June 2026

Response:

1. **Has Council undertaken any modelling or formed any expectations regarding the timing and scale of development arising from the Golden Grove Code Amendments?**

   High level modelling was undertaken during the initiation stages of the Golden Grove Code Amendments. Following the approval of Code Amendments by the Minister earlier this year, the Developer lodged plans for Stage 1 of the development. This initial stage is currently under assessment and continues to be evolve.

Despite the progress there still remains insufficient information including timing and anticipated yield to update the LTFP.

2. **Does Council currently expect any additional assessments arising from the Golden Grove development to enter the rating base during the 2027–2036 LTFP period?**

   Yes, there will be additional rating assessments as a result of the Code Amendments. The timing of when these come online and the extent of the additional assessments is not accurately known at this stage. However, staff will gain access to more reliable information as the assessment of Stage 1 progresses.

3. **If so, in which financial year are those additional assessments and associated rate revenue first expected to occur, and what assumptions support not factoring those assessments and associated rate revenue into future years of the draft LTFP?**

   With Stage 1 currently in the assessment stage, bulk earthworks are expected to commence later this calendar year. Rate revenue from the additional assessments may come online by late 2028/29.

   Notwithstanding, due to the absence of accurate information, particularly regarding timing and anticipated yield to update the LTFP, the overall financial impact on Council is initially expected to be neutral. As new dwellings become occupied, the increased rate revenue is anticipated to be offset by the cost of delivering services to the development.

   In addition, the LTFP was reviewed during February and early March 2026 and subsequently presented to the Audit and Risk Committee on 17 March 2026. It was then endorsed by Council on 14 April 2026 for the purposes of community engagement. Following the preparation of the LTFP, Stage 1 of the development was lodged into the PlanSA portal on 30 April 2026, providing the first opportunity to undertake a detailed review of this stage.

4. **If not, what assumptions support the expectation that no additional assessments will arise during the life of the LTFP?**

   The absence of accurate information particularly in relation to the future timing of future stages and anticipated yield.

Staff will continue to monitor the availability of information and its progression to a level that supports informed decision-making. Once adequate detail is available, it will be incorporated into the LTFP, along with associated costs of services and infrastructure included. With Stage 1 currently under assessment, it is expected that more reliable information will become available for the next iteration of the LTFP.

Attachments

N/A